

TENTATIVE RULINGS

Date: December 09, 2024

#	Case Name	Tentative
1	Dib vs Lopez 2021-01202917	Motion to Strike or Tax Costs Plaintiff Samira Dib's Motion to Strike or Tax Costs is GRANTED in part and DENIED in part. Plaintiff moves to strike the entirety of Defendant's cost bill, or alternatively specific items within the cost bill, based on Plaintiff's contention any CCP 998 offer made by the defense was not in good faith. Therefore, costs should not be awarded to defendant. Lost in the argument is the fact the jury rendered a defense verdict, making Defendant the prevailing party. <u>Legal Standard</u> <i>Code of Civil Procedure</i> section 1032(b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." <i>Code of Civil Procedure</i> section 1033.5 sets forth the specific items of costs which may and may not be recoverable in a civil action. An item not specifically allowable under subdivision (a) or specifically prohibited under subdivision (b) may nevertheless be recoverable in the court's discretion if "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." <i>Code Civ. Proc.</i> § 1033.5(c)(2). "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. However, whether a cost item was reasonably necessary is still a question of fact to be decided by the

trial court . . . [M]ere statements in the points and authorities accompanying the motion to tax costs and the declaration of its counsel are insufficient to rebut prima facie showing that the claimed costs were necessarily incurred.” *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266; *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131 [party seeking to tax deposition of designated expert has burden to prove cost unnecessary at time incurred or unreasonable]; *Fennessy v. DeLeuw-Cather Corp.* (1990) 218 Cal.App.3d 1192 [contestant met burden by showing majority of costs claimed by a dismissed defendant were incurred on behalf of other defendants who remained in the case].

Here, Defendant seeks to recover costs of \$46,844.39. Defendant’s memorandum of costs is verified by Defendant’s counsel, Charlotte M. Konczal. (ROA 270.) As such, the costs as set forth in the cost memorandum are prima facie evidence of their propriety.

Reasonableness of Defendant’s CCP § 998 Offer to Compromise

Plaintiff moves for an order striking Defendant’s memorandum of costs in its entirety on the grounds Defendant’s CCP § 998 Offer to Compromise on 1/31/24 for \$15,000 (policy limits) with each party to bear their own attorneys’ fees and costs, was a “token offer” made in bad faith with no reasonable expectation Plaintiff would accept it. This argument fails to acknowledge there was a defense verdict. Therefore, Defendant is the prevailing party entitled to recover authorized costs regardless of the CCP 998 offer.

The motion to strike the entire memorandum of costs is DENIED.

However, “Pursuant to subdivision (b)(1), fees of expert witnesses not ordered by the court (see § 1033.5, subd. (a)(8)) are not allowable as costs unless “expressly authorized by law.” (CCP § 1033.5, subd. (b)(1).)” *Olson v. Automobile Club of Southern California* (2008) 42 Cal. 4th 1142, 1149.

CCP § 998, subdivision (c)(1) provides:

“If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her postoffer costs and shall pay the defendant’s costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover

	postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant. “Section 998 allows for any party in a civil suit to serve a settlement offer to any other party before the commencement of trial.” <i>Adams v. Ford Motor Co.</i> (2011) 199 Cal.App.4th 1475, 1483. “The purpose of section 998 is to encourage the settlement of litigation without trial.” <i>Id.</i> Courts read a good faith requirement into section 998 to effectuate the purpose of the statute. Good faith in turn requires that the settlement offer be “realistically reasonable under the circumstances of the particular case.” <i>Wear v. Calderon</i> (1981) 121 Cal.App.3d 818, 821. The offer must therefore “carry with it some reasonable prospect of acceptance.” <i>Elrod v. Oregon Cummins Diesel, Inc.</i> (1987) 195 Cal.App.3d 692, 700. “[E]ven a ‘modest settlement offer’ may be in good faith if it is believed the defendant has a significant likelihood of prevailing at trial.” <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1264 [holding trial court did not abuse its discretion in awarding prevailing defendant expert witness fees where defendant’s pre-trial 998 offer to waive considerable cost bill, which plaintiffs rejected, had significant monetary value to plaintiffs and defendant prevailed at trial, which itself constituted prima facie evidence that the offer was reasonable]; <i>Carver v. Chevron U.S.A., Inc.</i> (2002) 97 Cal. App. 4th 132, 154 [“conditional offer of \$100 and waiver of costs and attorney fees” was “reasonable and in good faith” because it was “reasonably foreseeable as of the time the offer” that the defendant would prevail]. Nevertheless, even where a defendant obtains a defense verdict, courts may refuse to impose CCP § 998 penalties if it determines the defendant’s offer was merely a “token” or “bad faith” offer.” <i>Wear, supra</i>, at 821-822. “Where, as here, the offeror obtains a judgment more favorable than its offer, the judgment constitutes prima facie evidence showing the offer was reasonable and the offeror is eligible for costs as specified in section 998. The burden is therefore properly on plaintiff, as offeree, to prove otherwise. [¶] Finally, whether a section 998 offer was reasonable and made in good faith is a matter left to the sound discretion of the trial court.” <i>Elrod, supra</i>, at 700. Here, Defendant’s complete defense verdict after a jury trial constitutes prima facie evidence Defendant’s 998 Offer for his
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\$15,000 policy limits was reasonable. Inexplicably, Plaintiff argues in her reply the offer here did not lead to a judgment more favorable than the offer. (Reply, at 4:13.) Plaintiff is mistaken. Consequently, the burden shifts to Plaintiff to prove it was unreasonable. She has failed to do so. Therefore, Defendant's 998 Offer was reasonable.

The motion to strike the entire memorandum of costs is DENIED.

Item 1: Filing and Motion Fees

Plaintiff seeks to strike \$614.46 for the cost to filing Defendant's Answer and Notice of Posting Jury Fees. Plaintiff argues Defendant is not entitled to recover this or any cost incurred prior to the date of Defendant's 998 Offer, 1/31/24.

Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs.

The motion to strike \$614.46 from costs is DENIED.

Item 4: Deposition Costs

Plaintiff seeks to strike \$1,659.27 for the cost of Interpreter, Reporter and Video Conference for the deposition of Plaintiff because this is a pre-offer cost: the invoice supporting this cost is dated 10/26/22.

Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs.

The motion to strike \$1,659.27 from costs is DENIED.

Item 8: Witness Fees

Plaintiff argues \$39,580.00 in fees for three experts Defendant incurred after it served its 998 Offer should be taxed.

Jay Grossman, D.D.D.

Defendant requests fees of \$13,060, which is broken down into \$3,060.00 for reviewing 10 pages of Plaintiff's supplemental

	discovery responses (3.6 hours at \$850 per hour) and a flat rate of \$10,000 for a day of trial. Plaintiff objects to Dr. Grossman’s fees because Defendant has not provided any documentation to support the necessity of such expenses. Plaintiff points out Dr. Grossman did not testify at trial. Defendant does not dispute this fact. Plaintiff’s objection to the review of discovery lacks merit. First, Defendant provided documentation supporting the expense with its opposition. Second, the court has discretion to award reasonable expert fees for time reasonably spent in preparation for trial, whether or not the expert testifies, as well as time spent on the witness stand if the expert does testify. <i>Santantonio, supra</i>, at 123-124; <i>Michelson v. Camp</i> (1999) 72 Cal.App.4th 955, 974. However, given Dr. Grossman did not testify at trial, Plaintiff’s objection to the \$10,000 charge for a day of trial is proper and shifts the burden to Defendant to justify the charge. <i>Jones, supra</i>, at 1266 [“[I]f items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.”]. Defendant fails to offer any justification for this charge. The motion to tax \$10,000 from expert fees is GRANTED. <u><i>John Lieu, M.D., M.S.</i></u> Defendant requests fees of \$1,620, which is broken down into \$1,500.00 for review 1,110 pages of records (2.5 hours at \$600 per hour) and \$120 for a 20-minute consultation. Plaintiff objects to Dr. Lieu’s fees because Defendant has not provided any documentation to support the necessity of such expenses. Plaintiff’s objection to the review of records lacks merit. First, Defendant provided documentation supporting the expense with its opposition. Second, the court has discretion to award reasonable expert fees for time reasonably spent in preparation for trial, whether or not the expert testifies, as well as time spent on the witness stand if the expert does testify. <i>Santantonio, supra</i>, at 123-124; <i>Michelson, supra</i>, at 974. The motion to tax \$1,620 from expert fees is DENIED.
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AGSC Consulting, Inc. on behalf of Expert Arya Nick Shamie,
M.D.

Defendant requests fees of \$24,900, which is broken down into \$7,700 to review medical records and preparation of report (7 hours at \$1,100 per hour), \$2,200 for late cancellation of 4/1/24 deposition, and a flat rate of \$15,000 for a day of trial.

Plaintiff objects to Dr. Shamie's fees because Defendant has not provided any documentation to support the necessity of such expenses. As with the other experts, Plaintiff's objections to the review of medical records and preparation of a report are not well taken. *Santantonio, supra*, at 123-124; *Michelson, supra*, at 974.

Plaintiff objects to the cancellation charge because Plaintiff has no record of a confirmed deposition scheduled on or around 4/1/24. Plaintiff provided emails which indicate she emailed Defendant on 3/26/24 requesting experts availability for deposition on Friday afternoon, over the weekend or Monday afternoon, but Defendant did not respond until 4/1/24 at 2:55 pm responding that "were ready for the depo of our expert tonight" (referring to 4/1/24) and again at 4:02 pm stating "Please confirm Dr. Shamie's deposition is going forward at 8:00 p.m. and provide the deposition link for the appearance." Defendant's states in his support declaration that Plaintiff's counsel agreed on 4/1/24 to a deposition of Dr. Shamie on 4/1/24. In the opposition Defendant contends both parties agreed in court on 4/1/24 that Dr. Shamie would be available for deposition that evening. On this basis, Defendant has established the reasonableness of the charge.

Plaintiff objects to the flat rate \$15,000 for a day of trial because it contradicts Dr. Shamie's trial testimony and the time of his testimony at trial. Plaintiff provided a trial transcript from 4/4/24, wherein Dr. Shamie testified that the full day charge depended on how long he was in court. When asked if his fee would also be \$15,000.00 if he was in court for two hours, he responded "No. That would be a half a day," which would be a charge of \$7,500.00. The transcript indicates he testified that day for a total of 1.5 hours. Thus, according to Plaintiff, he should have only charged \$7,500 for trial.

Defendant argues he requested a full day of expert testimony as a matter of precaution due to the uncertainty of when he would be called to testify during the day; Dr. Shamie's schedule had to be

	cleared so he was available all day for any time needed. Defendant also argues that under Gov. Code, § 68092.5, it is not necessary that Dr. Shamie be “in court” all day to charge a full day of his time. In reply, Plaintiff argues Defendant knew when Dr. Shamie would be called to testify. According to Plaintiff, the day before Dr. Shami testified, the parties, in the presence of the court, discussed the order of witnesses and the anticipated timing of their testimony for the following day as had been their practice throughout the trial, and any changes that occurred or anticipated to occur would be discussed at the end of the day before. Both parties agreed Dr. Shamie’s testimony, including direct, cross and re-direct, would not take more than 1.25 hours as evidenced by the Witness List. Here, Dr. Shamie’s full day charge is unreasonable. The Witness List indicates the parties estimated Dr. Shamie would testify for 1.25 hours, Dr. Shamie actually testified for 1.5 hours during which he testified he ordinary bills for a half day when he testifies for two hours. Given the parties usual practice of discussing the witness schedule on a near daily basis during trial and Defendant’s argument that the timing of his testimony was uncertain, it was unreasonable for Defendant to request a full day of expert testimony from Dr. Shamie. A half day charge is reasonable to allow for Orange County traffic given Dr. Shamie is based in Los Angeles. Thus, Dr. Shamie’s fees should be taxed by \$7,500. Plaintiff also objects to Dr. Shamie’s fee because it exceeds the national average of expert costs and expenses of \$450/hour for file review/preparation and \$500/hour fee for testifying in court based on SEAK’s 2024 Expert Witness Fee Study. However, Dr. Shamie’s fee was included in his Fee Schedule that was provided to Plaintiff as part of Defendant’s expert designation and Plaintiff never objected to it. Defendant’s expert designation was served before Defendant’s 998 Offer. Thus, Plaintiff could have reasonably expected to pay Dr. Shamie’s hourly rate as part of Defendant’s costs if Defendant obtained a favorable outcome. Lastly, Plaintiff’s objection to Defendant’s choice to have “live” expert testimony at trial in lieu of a declaration lacks merit given that she too chose to use “live” expert witness testimony. The motion to tax \$7,500 from expert fees is GRANTED.
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		<u>Item 13: Interpreter Fees</u> Plaintiff seeks to strike \$1,150.00 for the cost of Interpreter/Translation Services for the deposition of Plaintiff because this is a pre-offer cost: the invoice supporting this cost is dated 10/15/22. Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs. The motion to strike \$1,150.00 from costs is DENIED. In summary, the motion to tax as to expert witness costs listed in Item No. 8 is GRANTED as to \$17,500, and DENIED as to the balance. Moving party to give notice.									
2	Floriani Engineering Inc vs Aegean Stoneworks, Inc., a California Corporation 2019-01061892	Motion to Be Relieved as Counsel of Record The motion of attorney John J. Freni, Esq., A Professional Law Corporation to withdraw as attorney of record for Plaintiff Floriani Engineering, Inc., d.b.a., Facilities Engineering is GRANTED. <i>Code Civ. Proc. § 284, CRC 3.1362.</i> Attorney John J. Freni, Esq seeks an order being relieved as counsel for Plaintiff Floriani Engineering, Inc., d.b.a., Facilities Engineering. Summary of Moving Attorney's Evidence: <table border="1"> <tr> <td>1A.</td><td>Mandatory Notice Form?</td><td>Yes. ROA 460</td></tr> <tr> <td>1B.</td><td>Mandatory Declaration Form?</td><td>Yes. ROA 452</td></tr> <tr> <td>1C.</td><td>Proposed Order?</td><td>Yes. ROA 461</td></tr> </table>	1A.	Mandatory Notice Form?	Yes. ROA 460	1B.	Mandatory Declaration Form?	Yes. ROA 452	1C.	Proposed Order?	Yes. ROA 461
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